

Veeranagouda S/O Shivanagouda Patil vs Vanishri D/O Basangouda Patil on 6 June, 2025

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RFA No. 100168/2016
C/W RFA CROB. No. 100018/2022

IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 6TH DAY OF JUNE, 2025 R
PRESENT
THE HON'BLE MR. JUSTICE SACHIN SHANKAR MAGADUM
AND
THE HON'BLE MR. JUSTICE G BASAVARAJA

RFA NO. 100168 OF 2016 (DEC/PAR)
C/W
RFA CROB. NO. 100018 OF 2022 (DEC/PAR)

IN RFA NO. 100168 OF 2016

BETWEEN:

1. ANNADANESHGOUDA
S/O BASANAGOU DA PATIL
AGED ABOUT 40 YEARS
OCC: ADVOCATE/AGRI
R/O HOLEHADAGALI, TALUK RON
DISTRICT: GAD-582209.
2. KUMARI TEJASWINI
D/O ANNADANESHGOUDA
AGED 8 YEARS
3. KUMAR RAJENDRAGOU DA
S/O ANNADANESHGOUDA
AGED ABOUT 11 YEARS

SINCE NO.2 AND 3 ARE MINORS
REP. BY THEIR GUARDIAN I.E.
THEIR FATHER ANNADANESHGOUDA
S/O BASANAGOU DA PATIL (APPELLANT NO.1)
AGED ABOUT 40 YEARS
OCC: ADVOCATE
R/O HOLEHADAGALI, TALUK RON
DISTRICT: GADAG-582209.

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4. SMT. SHASHIKALA @ AKKAMAHADEVI
W/O ANNADANESHGOUDA
AGED 32 YEARS, OCC: HOUSEHOLD
R/O HOLEHADAGALI, TALUK: RON
DISTRICT: GADAG-582209.

...APPELLANTS

(BY SRI. DAYANAND M. BANDI, ADVOCATE)

AND:

1. VANISHREE
ALLEGED D/O BASANAGOUA PATIL
AGED ABOUT 51 YEARS
OCC: PRIVATE
R/O HOLE HADAGALI, TALUK: RON
DISTRICT: GADAG-582209.
NOW AT SHIRAHATTI
2. SULOCHANA
ALLEGED W/O BASANAGOUA PATIL
SINCE DEAD BY LR_s ALREADY ON RECORD
R1, R4, R5 AND R6
3. VEERANAGOUA
S/O SHIVANAGOUA PATIL
AGED 61 YEARS
OCC: AGRICULTURE
R/O HULLUR
PRESENTLY R/AT
HOLEHADAGALI, TALUK: RON
DISTRICT GADAG-582209.
4. SMT. UMA
W/O VEERANAGOUA PATIL
AGED 55 YEARS
OCC: HOUSEHOLD
R/O HULLUR
PRESENTLY R/AT
HOLEHADAGALI, TALUK: RON
DISTRICT GADAG-582209.
5. NATARAJ
ALLEGED TO BE S/O BASANAGOUA PATIL
AGED 61 YEARS

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OCC: LECTURER
R/O HOLEHADAGALI
NOW R/AT SHIRAHATTI
TALUK SHIRAHATTI
DISTRICT GADAG-582120.

6. RAJASHEKHAR
ALLEGED TO BE S/O BASANAGOUDA PATIL
AGED 58 YEARS
OCC: ARTIST
R/O HOLEHADAGALI
NOW R/AT NO. 30, II FLOOR
N. SUBBAYYA ROAD, 12TH MAIN
5TH CROSS, VAIYYALI KAVAL
MALLESHWARAM, BENGALURU-560003.

[VIDE COURT ORDER, CAUSE TITLE IS AMENDED]

...RESPONDENTS

(BY SRI. C.S. SHETTAR, ADVOCATE FOR R1 AND R2;
SRI. PRASHANT S. HOSAMANI, ADVOCATE FOR R3;
SRI. AKASH R. NAIK, ADVOCATE FOR R4 TO R6;
R1, R5 AND R6 ARE LRs OF DECEASED R2)

THIS RFA IS FILED U/SEC.96 OF CPC., AGAINST THE
JUDGMENT AND DECREE DATED 11.03.2016 PASSED IN O.S.NO.
36/2009 ON THE FILE OF THE SENIOR CIVIL JUDGE AND JMFC, RON,
PARTLY DECREERING THE SUIT FILED FOR DECLARATION AND
PARTITION.

IN RFA CROB. NO. 100018 OF 2022

BETWEEN:

VEERANAGOUDA
S/O SHIVANAGOUDA PATIL
AGED 67 YEARS
OCC: AGRICULTURE
R/O HULLUR
NOW R/AT HOLE-HADAGALI
TALUK RON, DISTRICT GADAG-580024.

...CROSS OBJECTOR

(BY SRI. PRASHANT S. HOSAMANI, ADVOCATE)

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AND:

1. VANISHRI
D/O BASANGOUDA PATIL
AGED 57 YEARS
OCC: PRIVATE SERVICE
R/O HOLE-HADAGALI, T: RON
NOW R/AT SHIRAHATTI
DISTRICT GADAG-580024.

SULOCHANA
W/O BASANGOUDA PATIL
SINCE DEAD BY HER LRs ALREADY ON RECORD
AS R1, R6, R7 AND R8
2. ANNADANESHGOUDA
CALLING HIMSELF AS
S/O BASANGOUDA PATIL
AGED 45 YEARS
OCC: ADVOCATE
R/O HOLE HADAGALI, T: RON
DISTRICT GADAG-580024.
3. KUMARI TEJASWINI
D/O ANNADANESHGOUDA
AGED 14 YEARS, OCC: STUDENT
R/O HOLE HADAGALI, T: RON
DISTRICT GADAG-580024.
4. KUMAR RAJENDRAGOUDA
S/O ANNADANESHGOUDA
AGED 17 YEARS
OCC: STUDENT
R/O HOLE HADAGALI, T: RON
DISTRICT GADAG-580024.

BOTH R3 AND R4 ARE MINORS REP. BY
THEIR NATURAL GUARDIAN
R2-ANNADANESHGOUDA
CALLING HIMSELF AS S/O BASANGOUDA PATIL
AGE 45 YEARS
OCC: ADVOCATE
R/O HOLE - HADAGALI
T: RON, DISTRICT GADAG.

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5. SHASHIKALA @ AKKAMAHADEVI
W/O ANNADANESHGOUDA
AGE 39 YEARS
OCC: HOUSEHOLD
R/O HOLE HADAGALI, T: RON

DISTRICT GADAG-580024.

6. UMA W/O VEERANAGOUDA PATIL
AGED 62 YEARS
OCC: HOUSEHOLD
R/O HULLUR, NOW R/AT
HOLE - HADAGALI, T. RON
DISTRICT GADAG-580024.
7. NATARAJ S/O BASANGOUDA PATIL
AGED 67 YEARS
OCC: RETIRED LECTURER
R/O HOLE-HADAGALI, TALUK: RON
DISTRICT GADAG
NOW R/AT SHIRHATTI
DISTRICT GADAG-580024.
8. RAJASHEKAR S/O BASANGOUDA PATIL
AGED 64 YEARS
OCC: ARTIST
R/O HOLE-HADAGALI, TALUK RON
DISTRICT GADAG-580024.
NOW R/AT NO.30, II FLOOR
N. SUBBAYYA ROAD, 12TH MAIN
5TH CROSS, VAIYYALI KARAL
MALLESHWARAM, BENGALURU-06.

...RESPONDENTS

(BY SRI. C.S. SHETTAR, ADVOCATE FOR R1;
SRI. DAYANAND M. BANDI, ADVOCATE FOR R2 TO R5;
SRI. AKASH NAIK, ADVOCATE FOR R6 TO R8)

THIS RFA CROB. IS FILED U/O 41 RULE 22 OF THE CPC,
PRAYING TO MODIFY THE JUDGMENT AND DECREE DATED
11.03.2016 PASSED BY THE SENIOR CIVIL JUDGE AND JMFC RON IN
O.S. NO. 36/2009 CONSEQUENTLY HOLDING THAT THE DECREE IN
O.S. NO. 19/2009 IS NOT BINDING UPON THE CROSS-OBJECTOR
AND FURTHER DECLARE THAT THE CROSS-OBJECTOR IS THE
OWNER OF SUIT SCHEDULED I PROPERTIES IN THE INTEREST OF
JUSTICE AND EQUITY.

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THIS RFA AND RFA CROB. HAVING BEEN HEARD AND
RESERVED ON 29.04.2025, COMING ON FOR PRONOUNCEMENT OF
JUDGMENT THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS
UNDER:

CORAM: THE HON'BLE MR. JUSTICE SACHIN SHANKAR MAGADUM
AND

THE HON'BLE MR. JUSTICE G BASAVARAJA

C.A.V JUDGMENT

(PER: THE HON'BLE MR.JUSTICE SACHIN SHANKAR MAGADUM)

The captioned appeal in RFA.No.100168/2016 is filed by defendant Nos.1 to 4 challenging the judgment and decree passed by the trial Court in O.S.No.36/2009.

Defendant No.5 has filed cross appeal in RFA.Crob.No.100018/2022 to modify the judgment and decree by holding that the decree passed in O.No.36/2009 is not binding upon him and to further declare that defendant No.5 is the owner of suit schedule I properties.

2. The facts leading to the case are as under:

The suit properties described in Schedule II and III are admittedly the properties of Basanagouda, son of Sidaramagouda Patil, a resident of Holehadagalli village. Plaintiff No.2 claims to be the legally wedded wife

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of Basanagouda. The plaintiffs contend that Plaintiff No.1 and Defendants No.6 to 8 are the children born out of the wedlock of Basanagouda and Plaintiff No.2.

The plaintiffs have asserted that the property described in Schedule I originally belonged to Rudramma, the mother of Basanagouda. They contend that Defendant

No.5, who claims title over Schedule I property, had instituted a suit in O.S.No.58/1990 and obtained a decree in his favour. The plaintiffs alleged that Defendant No.5 subsequently transferred Schedule I property to Defendant No.1 by executing a vardhi, and claimed that the said property forms part of the joint family estate. On this basis, the plaintiffs asserted that only they and Defendant Nos.6 to 8 are entitled to legitimate shares in all the suit schedule properties.

Defendant No.1 appeared and filed a detailed written statement, vehemently denying the relationship of the plaintiffs and Defendants Nos.6 to 8 with Basanagouda. He specifically denied that Plaintiff No.2 was never married to

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Basanagouda. On the contrary, Defendant No.1 asserted that Basanagouda was legally married to one Anasuya, and that he (Defendant No.1) is the legitimate son born of that marriage.

Defendant No.1 also contended that there had been a family partition, under which Schedule I property was allotted to the share of Rudramma, the mother of Basanagouda. Rudramma, in turn, is said to have bequeathed the property in favour of one Gurappa Hugar. Defendant No.5 instituted suit in O.S.No.58/1990 against

Gurappa Hugar and secured a decree declaring him to be the absolute owner of Schedule I property. Therefore, Defendant No.1 contended that the plaintiffs had no right, title, or interest in Schedule I property and prayed for dismissal of the suit.

Defendant No.5 also filed a separate written statement, asserting exclusive ownership over Schedule I property and similarly sought dismissal of the suit.

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The plaintiffs and defendants adduced both oral and documentary evidence before the Trial Court. Upon a detailed appreciation of the evidence, the Trial Court answered Issue No.1 in the negative, holding that the plaintiffs had failed to prove that Plaintiff No.2 is the legally wedded wife of Basanagouda Patil, and that Plaintiff No.1 and Defendants No.6 to 8 are the legitimate children born from the alleged marriage. However, the Court went on to hold that Defendant No.1 had also failed to establish that he is the legitimate son of Basanagouda. Consequently, the suit filed with respect to Schedule I property was dismissed.

The present appeal in RFA No.100168/2016 is filed by Defendant No.1, challenging the findings and decree of the Trial Court. A cross-objection has also been filed

3. Learned counsel appearing on behalf of Defendant No.1 made elaborate submissions and filed a detailed synopsis, placing reliance on the judgment of the

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Hon'ble Supreme Court in Revanasiddappa and Another
vs. Mallikarjun & Ors.1.

4. Conversely, learned counsel for the plaintiffs strongly opposed the appeal, arguing that the plaintiffs are entitled to challenge the Trial Court's findings on Issue No.1, especially the observation that Plaintiff No.2 is not the legally wedded wife of Basanagouda Patil. A detailed written synopsis has also been filed by the plaintiffs' counsel in support of their contentions.

5. Having heard learned counsel appearing for the defendants and learned counsel appearing for the plaintiffs, the following points would arise for our consideration:

(i) Whether the plaintiffs, having failed to challenge the findings recorded on Issue No.1, have the locus standi to now assail the Trial Court's conclusion that Plaintiff No.2 failed to establish her marriage with Basanagouda Patil?

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(ii) Whether the Trial Court, after holding that the marriage between Plaintiff No.2 and Basanagouda Patil was not proved, committed a legal error in declaring Plaintiff No.1 and Defendants No.6 to 8 as the illegitimate children of Basanagouda, and if such a finding is perverse and warrants interference by this Court?

(iii) Whether the Trial Court erred in rendering a finding on the legitimacy of Defendant No.1 in the absence of a counterclaim or a specific issue framed to that effect?

(iv) Whether the cross-objection filed by Defendant No.5 is maintainable, particularly when the decree of the Trial Court in dismissing the suit as regards Schedule I property is already in his favour?

FINDING ON POINT NO.(i):

6. The Trial Court has meticulously examined the documentary and oral evidence adduced by the plaintiffs, as well as the rebuttal evidence produced by Defendant No.1, while addressing the crucial issue concerning the legal status of Plaintiff No.2 vis-à-vis Basanagouda Patil.

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During cross-examination, Defendant No.1 succeeded in eliciting crucial admissions from Plaintiff No.1, particularly that Plaintiff Nos.1 and 2 and Defendant Nos.6 to 8 profess the Muslim faith. Additionally, Plaintiff No.1 admitted to the contents and authenticity of documents

marked as Exs.D-2 to D-4 and Ex.D-29, which were

extensively relied upon by the defendants to rebut the plaintiffs' assertion of a valid marital relationship between Plaintiff No.2 and Basanagouda.

7. Specifically, Ex.D-2 (school certificate of Defendant No.7), Ex.D-3 (pertaining to Defendant No.8), and Ex.D-4 (relating to Defendant No.6) uniformly record Plaintiff No.2-Sulochanabai as the father of Defendants No.6 to 8, thereby significantly undermining the claim of her being their mother through a matrimonial relationship with Basanagouda. Further, Ex.D-29, being a registered sale deed obtained by Plaintiff No.2 on 01.08.1966, records her identity as "daughter of Renukabai Kalavant" and her religion as Muslim. Notably,

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at no point in that document is she described as the wife or widow of Basanagouda Patil.

8. Another critical document, Ex.D-30, is the last will and testament dated 16.06.1974 executed by Shivavva, the paternal aunt of Basanagouda Patil, in favour of Plaintiff No.2. In this testament as well, Plaintiff No.2 is referred to as "Sulochanabai, daughter of Renukabai Kalavant", again without any reference to her being the wife of Basanagouda.

9. On careful appreciation of these documents, the Trial Court recorded a categorical finding that there were no pleadings or evidence to demonstrate the solemnization of a valid marriage between Plaintiff No.2 and Basanagouda Patil. Furthermore, in the above-referred crucial documents executed at undisputed points of time, Plaintiff No.2 herself has not asserted her status as the wife of Basanagouda, which seriously militates against the plaintiffs' case.

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10. The Trial Court also took note of the geographical disparity. While Basanagouda was a permanent resident of Holehadagali village, the documents of the plaintiffs and Defendant Nos.6 to 8 reflect their residence as Shirahatti village, thereby reinforcing the conclusion that they did not constitute a matrimonial family unit. Consequently, Issue No.1, which pertains to the marital status of Plaintiff No.2, was answered in the negative, with a clear and reasoned finding that Plaintiff No.2 failed to establish that she was the legally wedded wife of Basanagouda Patil.

11. It is a settled principle of law that a finding which conclusively determines the legal status of a party such as marital status constitutes a decree within the

meaning of Section 2(2) of the Code of Civil Procedure, especially when such a finding affects the substantive rights of the parties and forms an integral part of the final adjudication. Accordingly, the finding on Issue No.1 amounts to a decree, and is not a mere observation or incidental remark.

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12. In the present case, neither the plaintiffs nor Plaintiff No.2 have chosen to prefer an appeal against this adverse finding. More significantly, they have also not invoked the remedy available under Order XLI Rule 22 of the Code of Civil Procedure, by way of cross-objection or cross-appeal, to challenge the said finding. In the absence of any such challenge, the plaintiffs particularly Plaintiff No.2 are estopped from disputing the binding effect of the finding on Issue No.1.

13. By failing to appeal or file cross-objections, the plaintiffs have acquiesced to the Trial Court's conclusion, and therefore, any attempt now to question that finding in appellate proceedings is barred under the doctrine of estoppel by acquiescence. It is well settled that a party who suffers an adverse decree or finding but chooses not to challenge it at the appropriate stage loses the right to contest its correctness at a later stage.

14. Accordingly, Point No.1 is answered in the Negative, holding that the plaintiffs, having failed to
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challenge finding on Issue No.1 cannot assail findings recorded on Issue No.1.

FINDING ON POINT NO.(ii):

15. Though the Trial Court categorically held that the plaintiffs failed to establish the solemnization of a valid marriage between Plaintiff No.2 (Sulochanabai) and Basanagouda Patil, it nevertheless proceeded to grant 1/5th share in the suit schedule properties to Plaintiff No.1 and Defendant Nos.6 to 8, by extending the benefit of Section 16(3) of the Hindu Marriage Act, 1955. This finding, in our considered view, is legally untenable, suffers from perversity, and warrants interference.

16. This Court has independently examined the pleadings, oral testimony, and documentary evidence on record. From the materials available, it emerges that Basanagouda Patil, during his lifetime, founded a drama company called Nataraj Natya Sangh, and Plaintiff No.2 was associated with it as a performing artist. Exs.D-9

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to D-15 and D-21 to D-23 are handbills and awards showcasing Plaintiff No.2's role as an actress. However, these documents do not support the claim of a valid marriage between Plaintiff No.2 and Basanagouda.

17. Defendant No.1 has relied upon two significant documents namely Ex.D-29, a registered sale deed dated 01.08.1966 obtained by Plaintiff No.2, and Ex.D-30, a registered Will executed by Shivavva, paternal aunt of Basanagouda. In both documents, Plaintiff No.2 is unequivocally described as "Sulochana", daughter of Renukabei Kalavant," and her religion is shown as Muslim. There is no assertion in either document that she is the wife or widow of Basanagouda. Crucially, the pleadings are also silent as to the solemnization of marriage between Plaintiff No.2 and Basanagouda, and for the first time during trial, Plaintiff No.2 claimed that she had married Basanagouda in 1953, without mentioning the date, month, or any particulars about such marriage. Her oral testimony on this aspect lacks credibility and specificity.

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18. To establish cohabitation and societal recognition of the relationship, Plaintiff No.2 examined PW.3 and PW.4, residents of Shirahatti village,

who merely stated that Plaintiff No.2 and Basanagouda lived together as husband and wife. However, their evidence is contradicted by Ex.D-22, a ration card which shows that Basanagouda was a permanent resident of Holehadagali village and resided with Defendant No.1, whereas the plaintiffs and Defendant Nos.6 to 8 were residing at Shirahatti. This discrepancy weakens the plaintiffs' version of matrimonial cohabitation and lends support to the defence version that there was no marriage nor continuous cohabitation as husband and wife.

19. Further, reliance by Plaintiffs on documents like Ex.P-14 (affidavit dated 28.09.1992) and letters allegedly written by Basanagouda (Exs.P-22, P-28, P-30) do not inspire confidence in light of the suppression of material facts. Ex.D-64, a letter written by Plaintiff No.1 to the Panchayat requesting non-issuance of her birth certificate, reveals deliberate concealment. From the birth

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certificate marked as Ex.D-41, it is evident that Plaintiff No.1's mother is Sulochana and her father is shown as Renavva Kalavant, who is in fact the maternal grandmother. Similarly, the birth register (Ex.D-56) affirms that Plaintiff No.2 hails from an artist family and is the daughter of Renukabei Kalavant. This evidence

conclusively establishes that the plaintiffs are Muslims by faith and that Plaintiff No.1 and Defendants No.6 to 8 are children born outside wedlock from the relationship between Plaintiff No.2 and Basanagouda.

20. The school certificates of Defendant Nos.6 to 8 (born between 1957 and 1965) further corroborate this fact. These documents list Sulochana Kalavant as the father and record the religion as Muslim, thereby confirming the plaintiffs' religious identity and the absence of any recognized Hindu marriage between Plaintiff No.2 and Basanagouda.

21. In light of the above, we must consider the legal framework:

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(i) Section 16(3) of the Hindu Marriage Act, 1955 confers legitimacy upon children born from void or voidable marriages under the Act. However, this legitimacy is statutorily limited. It does not confer upon such children any rights in the property of any person other than the parents. More importantly, this legal fiction of legitimacy under Section 16 is available only to children of Hindu parents whose marriage, though void or voidable, is recognized under the Hindu Marriage Act.

(ii) However, under Section 3(1)(j) of the Hindu

Succession Act, 1956, the term "related to" is statutorily confined to legitimate kinship relationships through lawful wedlock among Hindus. Where the claimants are not Hindus or are not born from a Hindu marriage, the protective umbrella of Hindu succession law is not available.

22. In the present case, it is conclusively established through documentary evidence that Plaintiff No.2 and her children are Muslims, and the marriage with
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Basanagouda who was a Hindu has not been established, much less solemnized under Hindu law. Therefore, the plaintiffs cannot invoke the legal fiction under Section 16(3) of the Hindu Marriage Act, as they fall outside the scope of the Act, and correspondingly, are not "heirs" under Section 8 read with Section 3(1)(j) of the Hindu Succession Act.

23. In the present case, the plaintiffs have utterly failed to establish even the basic foundation necessary to invoke the legal fiction under Section 16(3) of the Hindu Marriage Act, 1955. It is not only that the marriage between Plaintiff No.2 and the deceased Basanagouda has neither been pleaded with clarity nor proved by cogent evidence, but there is a conspicuous absence of any

material to show that they ever lived as husband and wife within the meaning and contemplation of Hindu law. On the contrary, the record clearly reflects that Plaintiff No.2 is a Muslim by religion and was a well-known actress by profession, enjoying her own distinct and independent identity in society. There is no evidence to suggest that

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she either projected herself as the wife of Basanagouda or was socially acknowledged in that role. The relationship, if any, between Plaintiff No.2 and Basanagouda appears to be no more than a casual or intimate association and certainly does not rise to the level of a marital union recognized under Hindu law.

24. It is trite that for the legal fiction under Section 16(3) of the Hindu Marriage Act to operate, the marriage in question must be one solemnized or purporting to be solemnized under the provisions of the said Act. Since the plaintiffs are Muslims and the alleged relationship was never sanctified through a Hindu marriage ceremony, they stand completely excluded from the statutory scheme of the Hindu Marriage Act, 1955. Consequently, the children born from such a relationship, however sympathetic their situation may be, cannot be conferred legitimacy under Section 16(3), nor can they be treated as "heirs" within

the meaning of Section 8 read with Section 3(1)(j) of the Hindu Succession Act, 1956. The term "related to" under Section 3(1)(j) of the Hindu Succession Act confines itself

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to relationships arising out of lawful Hindu wedlock and cannot be expanded to include children born out of relationships that fall outside the framework of the Act.

25. It is, therefore, evident that the Trial Court has committed a grave legal error in granting 1/5th share in the suit schedule property to Plaintiff No.1 and Defendants No.6 to 8 by wrongly invoking Section 16(3) of the Hindu Marriage Act. The impugned judgment, insofar as it extends inheritance rights to them, is not only factually unsupported but also reflects a fundamental misapplication of the governing statutory provisions. Mere existence of a physical relationship between Plaintiff No.2 and the deceased Basanagouda, absent any semblance of a valid or even a voidable Hindu marriage, cannot by itself amount to a marital relationship acknowledged by society or recognized by law. The impugned judgment, to the extent it confers property rights on Plaintiff No.1 and Defendants No.6 to 8, deserves to be reversed and set aside as being perverse, untenable, and legally unsustainable.

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26. Accordingly, the Trial Court's decree granting 1/5th share to Plaintiff No.1 and Defendants No.6 to 8 suffers from a fundamental misapplication of law, is perverse, and cannot be sustained. Hence, Point No.2 is answered in the affirmative, holding that the impugned judgment to the extent it confers property rights on Plaintiff No.1 and Defendant Nos.6 to 8 by invoking Section 16(3) of the Hindu Marriage Act is legally flawed, factually unsupported, and liable to be reversed.

FINDING ON POINT NO.(iii):

27. We are of the view that the Trial Court gravely exceeded its jurisdiction and committed a serious legal error in rendering a finding on the legitimacy and paternity of Defendant No.1 in the absence of either a counterclaim under Order VIII Rule 6A of the Code of Civil Procedure, 1908 or a specific issue framed for adjudication under Order XIV Rule 1 CPC. The plaintiffs had instituted the suit solely for the purpose of establishing that Plaintiff No.2 is the legally wedded wife of Basanagouda, and that Plaintiff No.1 and defendant Nos.6 to 8 are the legitimate

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children born from that wedlock. The lis before the Court was thus confined to the personal and legal status of the

plaintiffs. Defendant No.1, in his written statement, merely denied the plaintiffs' claim and contended that Anasuya was the legally wedded wife of Basanagouda and that he (Defendant No.1) is the legitimate son of Basanagouda. However, he did not seek any substantive or declaratory relief with respect to his own legitimacy, nor did he file a counterclaim as required under Order VIII Rule 6A CPC, which is the proper procedure for a defendant to assert any right or claim against the plaintiff. A declaratory adjudication on his legitimacy, absent a prayer and proper pleading, was thus beyond the scope of the Court's authority.

28. Furthermore, as per Order XIV Rule 1(1) and (5) CPC, issues arise only when a material proposition of fact or law is affirmed by one party and denied by the other. No issue was framed by the Trial Court relating to the legitimacy or paternity of Defendant No.1, and in the absence of such an issue, the Trial Court could not, in law,

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have rendered a conclusive and binding finding on the same. The jurisdiction of a civil court is limited to adjudicating only those matters which are properly brought before it through pleadings and framed issues.

This principle has been authoritatively reiterated by the

Hon'ble Supreme Court in Bachhaj Nahar vs. Nilima

Mandal & Anr.², where it was held that "a Court cannot grant a relief which is not claimed, and any finding or decree beyond the pleadings and issues is without jurisdiction and liable to be set aside."

29. The Indian Evidence Act, 1872 also reinforces this boundary. Section 5 of the Act clearly states that evidence may be given only of facts in issue and relevant facts. Section 11 permits facts not otherwise relevant to be admitted only if they are inconsistent with or render probable or improbable any fact in issue. In the present case, the paternity or legitimacy of Defendant No.1 was not a fact in issue, nor was it relevant to the determination

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(2008) 17 SCC 491

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of whether Plaintiff No.2 was the legally wedded wife of Basanagouda and whether plaintiff No.1 and defendant Nos.6 to 8 were legitimate children. The Trial Court, in the course of answering Issue No.1 which pertained to the marital relationship between Plaintiff No.2 and Basanagouda and the legitimacy of the plaintiffs has gone beyond the pleadings, beyond the scope of the issue, and has erroneously declared Defendant No.1 to be the illegitimate child of Basanagouda. Such a declaration not

only violates the procedural safeguards enshrined in the CPC and the Evidence Act but also infringes upon the rights of Defendant No.1 to be heard and to have the issue determined only upon proper pleading including counter claim, framing of issues, and adjudication. The finding is thus legally untenable, rendered without jurisdiction, and liable to be set aside. Accordingly, point No.3 is answered in the affirmative.

FINDING ON POINT NO.(iv):

30. The cross-objection in RFA.Crob.No.100018/2022 is filed by defendant No.5
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primarily assailing the judgment and decree rendered in O.S.No.36/2009 on the ground that the trial Court has not set aside the mutation under M.E.No.11/2008-09 and the decree passed in O.S.No.19/2009 obtained by defendant No.1 along with his children. The trial Court while answering issue No.2 has dealt with defendant No.5's right pursuant to decree obtained in O.S.No.58/1990. Para 65 to 67 would be relevant and the same are culled out which reads as under:

"65. The above referred mutations, proceedings in the suits are not in dispute between the parties. Therefore, these records clearly indicate that schedule-I lands were belong to Sidramagouda originally and after his death, Basanagouda,

Rudramma inherited those lands. Thereafter, name of Shivavva came to be entered, then there was partition between Basanagouda, Rudramma and Shivavva and in that partition schedule-I properties were allotted to the share of Rudramma. Rudramma executed will-deed in favour of Gurappa which was upheld in O.S.No.110/1973 and again the decree of that suit was not acted upon because of the compromise in O.S.No.58/1990. In O.S.No.58/1990 defendant No.5 of this case set-up his own right over

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schedule-I properties and succeeded. The decree was passed on 08.11.1990 and such decree has not been challenged by Basanagouda, his sisters, present plaintiffs, defendants No.1 to 8. Therefore, the decree in O.S.No.58/1990 reached its finality.

66. After the decree in O.S.No.58/1990 the name of defendant No.1 came to be entered in the records of schedule-I properties only on the basis of Vardi. The Hon'ble Supreme Court recently in the decision reported in AIR 2015 SC 2499 held that the mutation do not convey any rights and would not extinguish the existing right. Therefore, under law the defendant No.1 has not acquired any right over schedule-I property under the mutation produced at Ex.P-50 dtd. 09.12.2008. In spite of that fact there was a compromise between defendants No.1 to 4 herein in O.S.No.19/2009. When the defendant No.1 not acquired legal right under Ex.P-50, the defendants No.1 to 4 herein would not acquire any better title over schedule-I property. This discussion is necessary only to decide whether the plaintiffs and defendants No.6 to 8 who are claiming share in schedule-I property have got right and locus-standi in schedule-I property. In the present case, the defendant No.5 has not filed any counter claim and therefore, adjudication of the right between the defendants No.1 to 4 on the one hand and the

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defendant No.5 on the other hand in respect of schedule-I property is not required in this suit.

67. The above said records and the admitted facts between the parties clearly show that defendant No.5 acquired right over schedule-I property under the decree and that decree has not been challenged by any of the heirs of Rudramma till today. Therefore, the plaintiffs and defendants No.6 to 8 being the illegitimate children of Basanagouda have no locus-standi to challenge the decree in O.S.No.58/1990. Therefore, I hold that the plaintiffs cannot have right to dispute the mutation at Ex.P-50, decree in O.S.No.58/1990 and the decree in O.S.No.19/2009. For these reasons, I hold that the plaintiffs and defendants No.6 to 8 have no share in schedule-I properties. Accordingly, I answer this issue in the negative."

31. We have carefully examined the records. Defendant No.5 filed a suit against Gurappa MUDakappa Hugar in O.S.No.58/1990. In the said suit, defendant No.5 asserted title over schedule I property. The suit filed by defendant No.5 in O.S.No.58/1990 was decreed on 08.11.1990. The said decree is neither challenged by Basanagouda nor his sisters nor by the present plaintiffs

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and defendant No.1. The decree rendered in O.S.No.58/1990 has attained finality.

32. The plaintiffs' suit is dismissed insofar as schedule I properties is concerned. Since defendant No.5 is declared to be the absolute owner pursuant to decree rendered in O.S.No.58/1990 and there is no challenge either by plaintiffs or defendant No.1 and the fact that trial Court has examined the mutation obtained by defendant

No.1 under disputed M.E.No.11/2008-09 and has come to conclusion that merely based on a vardhi, an immovable property cannot be transferred, we are of the view that the defendant No.5 though was initially aggrieved by rejection of interlocutory application, where he sought leave of the Court to seek amendment of the written statement to enable him to seek a relief of declaration of his title, his title in respect of schedule I is incidentally decided.

33. In view of conclusive findings recorded by the trial Court thereby holding that defendant No.5 is the absolute owner pursuant to decree drawn in

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O.S.No.58/1990, we are of the view that the cross objection is not maintainable. The plaintiffs have accepted this decree insofar as schedule I properties are concerned. Similarly, defendant No.1 has not raised any counter claim in respect of schedule I properties and defendant No.1 has also not challenged the dismissal of suit insofar as schedule I properties are concerned. Accordingly, point No.4 is answered in the Negative.

34. CONCLUSIONS:

I. It is conclusively established from the pleadings and evidence on record that Plaintiff No.2 failed to either plead or prove a valid marriage with the deceased

Basanagouda Patil. The Trial Court, after an objective assessment of the documents and testimonies, rightly recorded a categorical finding that Plaintiff No.2 did not establish her status as the legally wedded wife of the deceased. Importantly, this finding on Issue No.1, which touches upon the marital status of Plaintiff No.2, constitutes a decree within the meaning of Section 2(2) of the Code of Civil Procedure, 1908. The said finding, having

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not been challenged through an appeal or by way of cross-objections under Order XLI Rule 22 of CPC, has attained finality. In the absence of any such challenge, the plaintiffs are estopped from disputing its validity in appellate proceedings. Accordingly, Point No.(i) is answered in the negative, holding that Plaintiff No.2 failed to establish that she was the legally wedded wife of the deceased Basanagouda, and the said finding, having not been appealed, binds the parties.

II. Despite the Trial Court having held that there was no valid marriage between Plaintiff No.2 and the deceased, it erroneously proceeded to grant 1/5th share in the suit schedule properties to Plaintiff No.1 and Defendant Nos.6 to 8 by invoking Section 16(3) of the Hindu Marriage Act, 1955. This approach is fundamentally

flawed in law. The legal fiction of legitimacy under Section 16(3) is confined only to children born from void or voidable marriages solemnized or purporting to be solemnized under the Hindu Marriage Act. The documentary evidence on record clearly establishes that

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Plaintiff No.2 and her children are Muslims, and the alleged marriage with the Hindu deceased, Basanagouda, was neither pleaded nor proved, nor shown to have been solemnized under Hindu law. In the absence of a valid or voidable Hindu marriage, the statutory benefit under Section 16(3) is not available. Furthermore, Section 3(1)(j) of the Hindu Succession Act restricts the term "related to" to relationships arising from lawful Hindu wedlock, which excludes the plaintiffs. The Trial Court's finding, therefore, amounts to a grave misapplication of statutory provisions. Accordingly, point No.(ii) is answered in the affirmative, holding that the judgment of the Trial Court in granting a share in the property to Plaintiff No.1 and Defendant Nos.6 to 8 is perverse, contrary to law, and liable to be reversed.

III. The Trial Court, while adjudicating Issue No.1 pertaining solely to the marital status of Plaintiff No.2 has erroneously ventured into the question of the legitimacy and paternity of Defendant No.1 without there being any

pleadings or issue framed on that aspect. Under Order XIV

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Rule 1(1) and (5) of the CPC, issues arise only when a material proposition of law or fact is affirmed by one party and denied by the other. No issue was framed concerning Defendant No.1's legitimacy or parentage. The finding rendered by the Trial Court on this point is thus beyond its jurisdiction and contrary to settled law as laid down in Bachhaj Nahar v. Nilima Mandal & Anr., (supra) which prohibits grant of reliefs beyond the scope of pleadings and framed issues. Additionally, Sections 5 and 11 of the Indian Evidence Act, 1872, restrict admissibility of evidence to relevant facts in issue. Since Defendant No.1's paternity was neither a fact in issue nor relevant for determining the marital status of Plaintiff No.2, the Trial Court's finding is procedurally flawed, rendered without jurisdiction, and in breach of Defendant No.1's right to a fair hearing. Accordingly, point No.(iii) is answered in the affirmative, holding that the finding on Defendant No.1's paternity is without jurisdiction, legally unsustainable, and liable to be set aside.

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IV. It is also relevant to note that the plaintiffs'

claim of inheritance is not entirely defeated by the rejection of their claim under Section 16(3) of the Hindu Marriage Act. A crucial document on record, namely Ex.D-30, being the last Will and testament dated 16.06.1974 executed by Shivavva, the paternal aunt of Basanagouda Patil, clearly demonstrates that Plaintiff No.2 was a beneficiary under the said Will. Under this testamentary disposition, Plaintiff No.2 was bequeathed 30 acres of land, and this property has devolved upon Plaintiff No.1 and Defendant Nos.6 to 8. Thus, the assertion of gross or irreparable injustice stands rebutted by the factual reality that a substantial share of property has already come to the plaintiffs by virtue of a valid testamentary instrument.

V. Moreover, the evidence also reveals a distinct and consistent customary practice followed by Plaintiff No.2 and her family, who hail from an artist community. As is evident from Exs.D-29 and D-30, Plaintiff No.2's identity and paternity have been consistently recorded and

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recognized through her mother Renukabai Kalavant, rather than a conventional patrilineal identification. This matrilineal identification appears to be a customary norm within the artist community to which Plaintiff No.2 belongs. Notably, this pattern has continued with the next

generation as well. Plaintiff No.1 and Defendant Nos.6 to 8 have also been identified and recorded through their mother, Plaintiff No.2, rather than through any assertion of paternal lineage.

VI. Such recognition of lineage through the maternal line, especially in a close-knit and socially distinct artistic community, indicates the presence of a socio-cultural practice that diverges from the mainstream Hindu patrilineal structure. However, while such custom may offer social recognition, it cannot substitute or override the formal requirements of a valid Hindu marriage or the statutory framework of inheritance under the Hindu Succession Act. That said, the fact that Plaintiff No.2 was considered worthy of a testamentary bequest by a close

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relative of the deceased though they were treated as strangers.

VII. Accordingly, this Court finds that no gross injustice has occurred. The plaintiffs, particularly Plaintiff No.1 and Defendant Nos.6 to 8, have already acquired substantial property through the Will (Ex.D-30), and their social identity and lineage have been customarily acknowledged through the maternal line. While this does not create a legal right under Hindu succession law, it

certainly mitigates the claim of denial of justice or complete exclusion.

VIII. The DNA report secured by this Court during the pendency of the present proceedings is, in our considered view, of no legal consequence and does not warrant examination or cognizance in light of the conclusive findings already recorded on Points I to III. As elaborated above, the plaintiffs have categorically failed to establish the solemnization of a valid marriage between Plaintiff No.2 and the deceased Basanagouda Patil, either

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through pleadings or cogent evidence. In the absence of proof of a valid or even a voidable marriage recognized under the Hindu Marriage Act, the question of legitimacy of the children under Section 16(3) of the said Act does not arise. Moreover, the plaintiffs have been conclusively shown to be Muslims by faith, and as such, they fall entirely outside the scope and protective framework of the Hindu Marriage Act and the Hindu Succession Act. In such circumstances, the biological relationship, even if established through DNA testing, becomes irrelevant to the adjudication of legal rights under the applicable personal laws. It is well settled that paternity established through scientific means like DNA testing cannot, by itself,

confer inheritance rights unless it is backed by proof of a
lawful marriage under the governing personal law.

Therefore, in the absence of a valid marital relationship,
the DNA report cannot override the statutory scheme or
the findings of this Court on the crucial legal issues.

Accordingly, we decline to examine or place any reliance
on the DNA report, as it does not in any manner alter or

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impact the final determination of the rights of the parties
in this case.

35. Accordingly, we proceed to pass the following:

ORDER

- (i) RFA.No.100168/2016 filed by defendant Nos.1 to 4 is allowed;
- (ii) The judgment and decree dated 11.03.2016 passed in O.S.No.36/2009 by the Court of Senior Civil Judge and JMFC, Ron is set aside;
- (iii) Cross objection filed by defendant No.5 in RFA.Crob.No.100018/2022 is dismissed.

Sd/-

(SACHIN SHANKAR MAGADUM) JUDGE Sd/-

(G BASAVARAJA) JUDGE CA